

Tenancy Mould Escalation Report

101 Boundary Road, Dubbo NSW 2830

Prepared for: Joshua Parris

Prepared date: 7 June 2026

Key position

The mould issue was reported on 25 April 2026 and followed up multiple times. The property manager acknowledged on 5 May 2026 that she was waiting to hear back from the landlords. A deadline for a written update was set for close of business Friday 12 June 2026.

If there is no clear response or remediation plan by that deadline, the recommended next step is to prepare and lodge an NCAT application seeking repair orders, consistent with the advice received from the New England and Western Tenants Advice and Advocacy Service.

Important note: This document is a practical record and action guide, not legal advice. It summarises the email trail, advice provided to Joshua, and official NSW/NCAT information checked on 7 June 2026. Before lodging, it is sensible to confirm the wording with NEWTAAS or NSW Fair Trading if anything has changed.

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1. Executive summary

- **Issue:** A large dark mould patch has been observed in the shed at 101 Boundary Road, Dubbo.
- **First report:** 25 April 2026, with a photo attached.
- **Further follow-ups:** 4 May 2026; 14 May 2026 at 3:07 pm; 14 May 2026 at 6:32 pm; and 7 June 2026.
- **Agent acknowledgement:** On 5 May 2026, Gabby advised: "Thank you, I am waiting to hear back from the landlords."
- **Current concern:** More than six weeks have passed since the initial report, and there is no clear written plan for inspection, treatment, or repair of the underlying cause.
- **Deadline set:** Close of business Friday 12 June 2026 for a written update.
- **Recommended next step if no response:** Prepare and lodge an NCAT application seeking an order that the landlord complete specified repairs under section 65(1)(a).

Bottom line: The communication record shows a calm and reasonable tenant who has repeatedly reported a potentially health-related maintenance issue, given the agent time to obtain landlord instructions, and now has grounds to move from informal follow-up to formal escalation if no clear plan is provided.

2. Current position and what the emails imply

The email chain does not read as aggressive. It reads as procedural, documented, and increasingly formal. To Gabby, the emails likely imply the following:

- **A clear paper trail exists.** The original report, follow-ups, dates, photo evidence, and agent response are all in writing.
- **You have been reasonable and patient.** You gave the agency several weeks and asked for next steps rather than immediately threatening formal action.
- **The matter is becoming formal.** The 7 June email sets a clear deadline and mentions seeking further advice if there is still no plan.
- **You are asking for a specific outcome.** The request is not vague: landlord response, inspection, assessment of moisture/leak/ventilation, treatment, and timeframe.

- **The issue is framed around health and safety.** The emails emphasise concern for the family and children, and the current avoidance of the shed.
- **You understand there are formal pathways.** The wording signals that Fair Trading, NEWTAAS, or NCAT may be involved if the landlord does not act.

2.1 Recommended tone from here

- Stay calm, factual, and written. Do not keep sending emotional or repeated follow-ups.
- Avoid saying "no response" because Gabby did respond on 5 May. The stronger accurate wording is "no clear update or plan".
- Do not forward the NEWTAAS email chain to the property manager. It contains a confidentiality footer and a typo in your name. Refer to it only as "tenancy advice" if needed.
- Do not stop paying rent or arrange your own mould remediation unless you have written approval or proper advice.

3. Chronology of the matter

Date/time	Who	Event	Importance
Before tenancy / ingoing condition report	Tenant evidence	NEWTAAS advice says the black mould was noted on the ingoing condition report before moving in.	Important because it supports that the issue may not have been caused by current tenant behaviour. Attach the report page.
25 Apr 2026, 3:16 pm	Josh to Gabby	Original email reporting a fairly large dark mould patch in the shed, with photo attached. Josh asked for next steps and noted concern about moisture/leak issues and health/safety.	Starts the written repair request and evidence trail.
4 May 2026, 10:13 am	Josh to Gabby	Follow-up asking whether the black mould email had been received.	Shows the issue was not left idle.
5 May 2026, 2:32 pm	Gabby to Josh	Gabby replied: "Thank you, I am waiting to hear back from the landlords."	Acknowledges the issue and confirms landlord instructions were pending.
5 May 2026, 2:33 pm	Josh to Gabby	Josh replied: "No worries, thanks for the update."	Shows patience and cooperation.
14 May 2026, 3:07 pm	Josh to Gabby	Follow-up on remaining items. Mould in back shed: first reported 25 April; followed up 4 May; avoiding shed due to health concerns; requested assessment and treatment including moisture/ventilation issue.	Clear written request for action and timeframe.
14 May 2026, 6:32 pm	Josh to Gabby	Josh advised kitchen	Narrows the outstanding

		drawer handles and shower pressure were resolved by Kristy's dad, leaving mould outstanding. Asked for next steps and expected timeframe.	issue to mould only.
19 May 2026, 4:31 pm	NEWTAAS to Josh	Tenant advocate provided draft escalation email and advised that if no action is taken within the timeframe given, Josh can apply to NCAT. They identified section 65(1)(a) as the relevant repairs order.	External tenancy advice supports formal escalation.
7 Jun 2026, 3:42 pm	Josh to Gabby	Josh sent a calm escalation email summarising the timeline, asking whether landlords replied, whether inspection/remediation will be arranged, and requesting written update by close of business Friday 12 June 2026.	Sets a clear final response deadline.
12 Jun 2026, close of business	Deadline	Deadline for written update expires.	If no clear response or plan is received, move to NCAT preparation/lodgement.

4. NSW tenancy framework checked

This section is a practical summary of official/current public sources checked on 7 June 2026. Use the source links at the end of this document to confirm details before lodging.

4.1 Mould responsibility in NSW rentals

- NSW Government guidance says tenants must notify the landlord or agent as soon as possible if they see mould or damp developing.
- Responsibility depends on the cause. A tenant may be responsible where mould developed because they allowed moisture build-up, such as never opening windows or not using ventilation fans.
- A landlord may be responsible where mould is linked to property faults, such as disrepair, a leak, structural issue, or inadequate ventilation.
- Your strongest factual points are that the mould was reported in writing, it was apparently on the ingoing condition report, and you have asked for the underlying source to be investigated rather than merely cleaned cosmetically.

Source: NSW Government, "Mould in a rental property" [S1].

4.2 Repairs process

- NSW Government guidance says tenants should contact their landlord or real estate agent first when repairs are needed.
- For non-urgent repairs, the tenant should make the request in writing, describe the problem, keep evidence, and give a reasonable timeframe.
- Your 7 June email has now done this clearly by setting a deadline of close of business Friday 12 June 2026.

Source: NSW Government, "Getting repairs done on a rental property" [S2].

4.3 NSW Fair Trading rectification orders

- NSW Fair Trading can investigate whether a landlord has breached the obligation to provide and maintain the property in a reasonable state of repair.
- A tenant may ask NSW Fair Trading to investigate if they have written to the landlord asking for repairs, the written request identifies the repairs, and the landlord has failed to carry them out satisfactorily without a reasonable excuse.
- This can be considered alongside NCAT advice, but because NEWTAAS specifically advised NCAT, the main recommended pathway here is NCAT unless NEWTAAS advises otherwise.

Source: NSW Government, "Rectification orders for rental properties" [S3].

4.4 NCAT repair orders

- NCAT can make orders in tenancy matters, including repair work to be completed.
- NCAT's tenancy and social housing orders list section 65(1)(a) as: "An order that the landlord carry out repairs."
- The Residential Tenancies Act 2010 section 65 provides that the Tribunal may order specified repairs if it determines that the landlord has breached the obligation to maintain the residential premises in a reasonable state of repair.

Sources: NCAT tenancy orders [S4]; Residential Tenancies Act 2010 section 65 [S5].

4.5 NCAT fees

- As checked on 7 June 2026, NCAT lists residential proceedings at \$62 standard fee, \$124 corporation fee, and \$16 reduced fee.
- NEWTAAS gave the same practical figures: \$62 standard, or \$16 if eligible for concession.

Source: NCAT fees page [S6].

5. Evidence bundle to prepare

Prepare one PDF evidence bundle before lodging or before any hearing. Keep it simple and chronological.

Item	Include	Why it matters
1	Tenancy agreement and any section showing the shed is part of the premises or included amenity.	Shows the shed is part of what you rent or use.

2	Ingoing condition report page showing mould noted before you moved in.	Supports the argument that the problem pre-existed the tenancy.
3	Original photo attached on 25 April 2026.	Shows the condition when first reported.
4	Fresh photos dated after 12 June 2026, including wide shot and close-up.	Shows the issue remains unresolved after the deadline.
5	Full email chain from 25 April to 7 June 2026, saved as PDF.	Shows written notice, follow-ups, acknowledgement, and deadline.
6	Notes about how the shed is currently being used or avoided.	Supports loss of use / safety concern.
7	Photos or list of belongings stored in the shed, if relevant.	Useful if there is any property damage risk or actual damage.
8	Any medical or health concerns only if directly relevant and you are comfortable including them.	Avoid over-sharing; health concern can be stated generally unless specific evidence is needed.
9	NEWTAAS advice summary, not necessarily the full email chain.	Supports that you sought advice. Avoid forwarding confidential text unless advised.
10	A proposed order wording page.	Makes it easy for NCAT or the agent to understand exactly what you want.

6. Action plan if no reply by Friday 12 June 2026

6.1 Friday 12 June after close of business

- Check whether any email has arrived from Gabby or the agency with a clear plan and timeframe.
- If there is no clear plan, do not send repeated informal messages that restart the waiting cycle.
- Take fresh photos of the mould and the surrounding shed area.

6.2 Weekend / Monday 15 June 2026

- Save the full email chain as a PDF.
- Save the ingoing condition report page showing mould, if available.
- Prepare the NCAT form using section 65(1)(a).
- Call NEWTAAS if you want them to check the wording before lodging.
- Lodge through NCAT Online Services or at Service NSW, using the current NCAT fee information.

6.3 What not to do

- Do not stop paying rent without advice.
- Do not remove the mould yourself if doing so could disturb spores, damage evidence, or interfere with a landlord inspection.
- Do not make threats or accuse Gabby personally. Keep it about the unresolved repair issue and landlord response.

- Do not forward the full NEWTAAS email to the agent because of the confidentiality footer and because a short reference to having received tenancy advice is enough.

7. NCAT application wording

The following wording is based on the tenant advocate email and official NCAT order categories. Adjust it to match the NCAT form you lodge.

Section 4a - orders sought

Section 65(1)(a) - an order that the landlord completes specified repairs.

Section 4b - details of what you are seeking

Black mould is present in the shed at 101 Boundary Road, Dubbo NSW 2830. The mould was noted on the ingoing condition report before we moved into the property. We first reported the issue to the real estate agent in writing on 25 April 2026 with a photo attached. We followed up on 4 May 2026, 14 May 2026 at 3:07 pm, 14 May 2026 at 6:32 pm, and again on 7 June 2026. On 5 May 2026 the agent advised that she was waiting to hear back from the landlords. As at [insert date], no clear plan or timeframe has been provided for inspection, cleaning/remediation, or repair of any underlying moisture, leak, or ventilation issue. We are avoiding use of the shed due to concerns about mould exposure and potential damage to belongings stored there. We seek orders that the landlord arrange an appropriate inspection, treat/remediate the mould, repair the underlying cause, and provide a clear timeframe for completion.

Specific orders to request

- The landlord arrange inspection of the shed by an appropriate tradesperson or mould/moisture professional.
- The landlord identify and repair any moisture, leak, roofing, wall, drainage, or ventilation cause contributing to the mould.
- The landlord arrange safe cleaning/remediation of the existing mould.
- The landlord provide a written timeframe for commencement and completion.
- Any other repair order NCAT considers appropriate.

8. Email templates

Use these only if needed. Keep everything in the same email thread where possible.

8.1 Email if no response by Friday 12 June 2026

Subject: Mould issue at 101 Boundary Road - no response received

Hi Gabby,

I am following up regarding the mould issue in the shed at 101 Boundary Road, Dubbo.

I requested a written update by close of business Friday 12 June 2026. As I have not received a clear response or plan for inspection/remediation, I will now be taking further advice and preparing an NCAT application seeking repair orders.

We would still prefer to resolve this directly if the landlord is willing to provide a clear written plan and timeframe.

Kind regards,

Josh

8.2 Stronger version if you want to mention NEWTAAS

Subject: Mould issue at 101 Boundary Road - formal repair request

Hi Gabby,

I am following up regarding the mould issue in the shed at 101 Boundary Road, Dubbo.

This issue was first reported on 25 April 2026, with a photo attached, and followed up on 4 May, 14 May, and 7 June. On 5 May, you advised that you were waiting to hear back from the landlords.

We have now sought tenancy advice. We would prefer to resolve this directly, but if no clear plan and timeframe is provided, we will proceed with an NCAT application seeking repair orders.

Please confirm whether the landlord will arrange inspection, treatment/remediation, and repair of any underlying moisture, leak, or ventilation issue.

Kind regards,

Josh

9. Hearing preparation notes

If the matter proceeds to NCAT, keep your presentation short and chronological. The clearest version is:

- The mould was noted on the ingoing condition report before we moved in.
- We reported it in writing on 25 April 2026 and attached a photo.
- We followed up repeatedly and the agent confirmed on 5 May that she was waiting for landlord instructions.
- More than six weeks passed with no clear plan or timeframe.
- We are avoiding use of the shed due to mould concerns and risk to stored belongings.
- We are not asking for an argument; we are asking for inspection, remediation, and repair of the underlying cause.

9.1 Simple spoken summary

We are seeking repair orders because there is black mould in the shed, it was noted before we moved in, we reported it in writing with photos, and despite multiple follow-ups over more than six weeks there has been no clear plan to inspect, clean, or repair the cause. We want the landlord to arrange proper inspection and remediation and fix any underlying moisture, leak, or ventilation issue.

10. Source notes

Public sources checked on 7 June 2026:

ID	Source	URL
S1	NSW Government - Mould in a rental property	https://www.nsw.gov.au/housing-and-construction/rules/mould-a-rental-property
S2	NSW Government - Getting repairs done on a rental property	https://www.nsw.gov.au/housing-and-construction/renting-a-place-to-live/getting-repairs-done
S3	NSW Government - Rectification orders for rental properties	https://www.nsw.gov.au/housing-and-construction/rules/rectification-orders-for-rental-properties
S4	NCAT - Tenancy and social housing orders	https://ncat.nsw.gov.au/case-types/housing-and-property/tenancy/tenancy-and-social-housing-orders.html
S5	Residential Tenancies Act 2010 (NSW), section 65	https://classic.austlii.edu.au/au/legis/nsw/consol_act/rta2010207/s65.html
S6	NCAT - Fees at NCAT	https://ncat.nsw.gov.au/forms-and-fees/fees-at-ncat.html
S7	Tenants Union NSW - Mould factsheet	https://www.tenants.org.au/factsheet-24-mould

Private source supplied by Joshua

- Email from New England and Western Tenants Advice and Advocacy Service dated 19 May 2026, including draft escalation wording and advice that if no action is taken within the timeframe given, Joshua can apply to NCAT using section 65(1)(a).
- Email chain between Joshua Parris and Dubbo Real Estate Agency/Gabby between 25 April 2026 and 7 June 2026.